

1 **CODE 4165**

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5 **IN THE FAMILY DIVISION OF**
6 **THE SECOND JUDICIAL DISTRICT COURT OF THE STATE OF NEVADA**
7 **IN AND FOR THE COUNTY OF WASHOE**

8 **MEGAN MCCAFFERTY,**

9 **Applicant,**

Case No: TPO16-01555

10 **vs.**

Dept. No: DM3

11 **DONOVAN CLARK,**

12 **Adverse Party.**

Date Issued: 10/03/16

13 **Date Expires: 11/02/16**

14 **TEMPORARY ORDER**
15 **FOR PROTECTION AGAINST DOMESTIC VIOLENCE**

16 **VIOLATION OF THIS ORDER IS A CRIME**

17 **YOU, THE ADVERSE PARTY, ARE NOTIFIED THAT YOU CAN BE ARRESTED** even if the
18 person who obtained this Order invites or allows you to contact him or her. You have the sole responsibility to
19 avoid or refrain from violating the terms of this Order. Only the Court can change this Order upon written
application.

20 **YOU ARE FURTHER NOTIFIED THAT IF YOU ARE ARRESTED FOR VIOLATING THIS**
21 **ORDER,** you will not be admitted to bail sooner than 12 hours after your arrest if: (1) the arresting officer
22 determines that the violation is accompanied by a direct or indirect threat of harm; or (2) you have previously
23 violated a temporary or extended order for protection of the type for which you have been arrested; or (3) at the
time of the violation or within 2 hours after the violation, you have: (a) a concentration of alcohol of 0.08 or
more in your blood or breath; or (b) an amount of a prohibited substance in your blood or urine that is equal to
or greater than the amount set forth in subsection 3 of NRS 484.379.

24 **YOU ARE FURTHER NOTIFIED** that child stealing/kidnapping is a felony.

25 **THIS ORDER** is valid and enforceable throughout the State of Nevada. This Order meets all Full
26 Faith and Credit provisions of the Violence Against Women Act, and is enforceable in all 50 states, the
District of Columbia, U.S. Territories, and Indian Nations. All other courts and law enforcement
27 agencies with jurisdiction within the United States and all Indian Nations shall give full faith and credit
to this Order pursuant to 18 U.S.C. § 2265.

28 An Application and Affidavit having been filed in this Court by the above-named

1 Applicant requesting that a Temporary Order for Protection against Domestic Violence
2 be issued by this Court against **YOU**, the above-named Adverse Party, or the Court
3 having received specific facts by telephone/facsimile pursuant to NRS 33.020(5), and
4 the Court having jurisdiction over the parties and this matter pursuant to NRS 33.010,
5 et seq., and it appearing to the satisfaction of the Court from specific facts shown by a
6 verified Application that an act of domestic violence has occurred, there exists a threat
7 of domestic violence, and/or you represent a credible threat to the physical safety of
8 the Applicant or the minor child(ren) and good cause appearing for issuing such Order
9 without hearing, **YOU ARE HEREBY ORDERED** as follows:

10 **YOU ARE PROHIBITED**, either directly or through an agent, from threatening, physically
11 **injuring or harassing** the above-named Applicant and/or minor child(ren). **YOU ARE FURTHER**
12 **PROHIBITED** from selling, damaging, destroying, giving away, or otherwise disposing of, or
13 **tampering with**, any property owned by the Applicant, or in which Applicant has an interest;

14 **YOU ARE PROHIBITED** from any contact whatsoever with the Applicant, including but not
15 **limited to**, in person, by telephone, through the mail, through electronic mail (e-mail), facsimile or
16 **through another person**;

17 1. X **YOU ARE EXCLUDED AND ORDERED** to stay at least 100 yards away from
18 Applicant's residence located in WASHOE COUNTY, NEVADA, ☐ CONFIDENTIAL ☒ 6550
19 PYRAMID WAY SPARKS or any other place that Applicant may reside. YOU shall not interfere with
20 Applicant's possession and use of residence, including utilities, phones, leases and other related
21 residential services;

22 2. X A law enforcement officer, within whose jurisdiction Applicant's residence is located,
23 shall on **ONE OCCASION ONLY** accompany Adverse Party to Applicant's residence located at
24 6550 PYRAMID WAY #37, SPARKS, NEVADA and shall stand by while Not Applicable obtains
25 clothing, toiletries and the following additional items: NOT APPLICABLE. **ANY**
26 **PROPERTY IN DISPUTE SHALL REMAIN IN THE RESIDENCE UNLESS IT IS**
27 **SPECIFICALLY IDENTIFIED IN THIS ORDER.**

28 3. X The Court, having jurisdiction under and meeting the requirements of Chapter 125A

of the Nevada Revised Statutes (UCCJEA), grants to Applicant temporary custody of the following minor child(ren) of the parties ALEXIS CLARK 2/24/14; **YOU ARE PROHIBITED** from interfering with Applicant's custody of the minor child(ren) named in this paragraph. It is in the best interest of the child(ren) that no negative, insulting, or disparaging comments be made by one party against the other party in the presence of the minor child(ren); **(SEE PROVISION 9, HEREIN BELOW)**

4. N/A Custody, visitation, and support of the minor child(ren) of the parties shall remain as ordered in the Decree of Divorce/Order entered between the parties in Case Number NOT APPLICABLE in the NOT APPLICABLE Judicial District Court of the State of Nevada;

u 5. X **YOU ARE EXCLUDED AND ORDERED** to stay at least 100 yards away from the minor child(ren)'s school(s), or day care, including but not limited to the places listed. WASHOE COUNTY, NEVADA ☐ CONFIDENTIAL, at ☒ SEPULVEDA ELEM 507 ION DR SPARKS.

6. N/A **YOU ARE EXCLUDED AND ORDERED** to stay at least 100 yards away from the place(s) of employment located in , ☐ CONFIDENTIAL, at ☒ Not Applicable , or any other place that Applicant may be employed. **YOU ARE PROHIBITED** from any contact whatsoever with these place(s) of employment, in person, by telephone, by mail, or any other means of communication;

7. N/A **YOU ARE EXCLUDED AND ORDERED** to stay at least 100 yards away from the following places, frequented regularly by Applicant and/or minor child(ren) as/described as:, located in ☐ CONFIDENTIAL, at ☒ Not Applicable .

u 8. X Notwithstanding other provisions of this ORDER, the following provisions and exceptions are made a part of this ORDER:

u (a) ☒ **YOU ARE PROHIBITED**, either directly or through an agent, from physically injuring or threatening to injure any animal owned or kept by the Applicant the minor child(ren) or you.

u (b) ☒ **YOU ARE PROHIBITED**, either directly or through an agent, from taking possession of any animal owned or kept by the Applicant or the minor child(ren).

u 9. ☒ The following provisions and exceptions are made a part of this Order:

A.ADVESER PARTY IS PROHIBITED FROM HAVING ANY CONTACT OR COMMUNICATION WITH

1 THE PARTIES' MINOR CHILD/REN, PENDING FURTHER ORDER OF THE COURT.

2 B.ADVERSE PARTY IS PROHIBITED FROM HAVING ANY CONTACT OR COMMUNICATION WITH
3 APPLICANT'S OTHER MINOR CHILD/REN.

4 C. UPON SERVICE OF THIS ORDER, ADVERSER PARTY IS TO SURRENDER APPLICANT'S
5 BIRTH CERTIFICATE AND PERSONAL I.D. AS WELL AS THE BIRTH CERTIFICATES OF
6 BOTH MINOR CHILDREN TO LAW ENFORCEMENT.

7 **THIS ORDER WILL REMAIN IN EFFECT UNTIL 11:59 P.M. ON THE DATE SET FORTH ON PAGE 1**
8 **UNLESS THIS COURT ORDERS OTHERWISE.** If an Application for an Extended Order is filed, this
9 Temporary Order will remain in effect until the hearing on an Extended Order is held.

10 If you wish to dispute this Order or have it changed, you may request a hearing by filing a written
11 request with this Court. Court staff will give you information about how to file your request. The Court
12 will set a hearing on your request as quickly as possible.

13 **IT IS FURTHER ORDERED** that a copy of this Order shall be transmitted forthwith together with the
14 verified Application and supporting Affidavit, to the Sheriff's Office, or the Constable, who will promptly
15 attempt to serve the same upon the Adverse Party, and upon service, file a Return of Service form with
16 the Court by the end of the next business day after service is made.

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(C) It shall be the duty of the law enforcement officer serving this Order to remove the Adverse Party from Applicant's residence as set forth in paragraph 1 of this Order.

Casey Campbell

Judge/Hearing Master

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NOTICES TO THE ADVERSE PARTY

THIS ORDER IS VALID AND ENFORCEABLE THROUGHOUT THE STATE OF NEVADA.

PURSUANT TO THE VIOLENCE AGAINST WOMEN ACT, 18 U.S.C. §2265, THE TEMPORARY ORDER FOR PROTECTION OF THE COURT SHALL BE GIVEN FULL FAITH AND CREDIT IN ANY OTHER STATE OR TRIBAL LAND AND SHALL BE ENFORCED AS IF IT WERE AN ORDER ISSUED IN THAT STATE OR TRIBAL LAND.

IF YOU TRAVEL ACROSS STATE OR TRIBAL LAND LINES WITH THE INTENT TO INJURE THE APPLICANT AND THEN INTENTIONALLY COMMIT A CRIME OF VIOLENCE CAUSING BODILY INJURY TO THE APPLICANT, YOU MAY BE CONVICTED OF COMMITTING A FEDERAL OFFENSE UNDER THE VAWA, 18 U.S.C. §2261(a)(1). YOU MAY ALSO BE CONVICTED OF COMMITTING A FEDERAL OFFENSE IF YOU CAUSE THE APPLICANT TO CROSS STATE OR TRIBAL LAND LINES FOR THIS PURPOSE. 18 U.S.C. §2261(a)(2).

IF YOU TRAVEL ACROSS STATE OR FEDERAL LAND LINES WITH THE INTENT TO VIOLATE THE TEMPORARY ORDER FOR PROTECTION AND SUBSEQUENTLY VIOLATE SUCH ORDER, YOU MAY BE CONVICTED OF COMMITTING A FEDERAL OFFENSE UNDER THE VAWA, 18 U.S.C. §2262(a)(1). YOU MAY ALSO BE CONVICTED OF COMMITTING A FEDERAL OFFENSE IF YOU CAUSE THE APPLICANT TO CROSS STATE OR TRIBAL LAND LINES FOR THIS PURPOSE. 18 U.S.C. §2262(a)(2).

1 PENALTY FOR VIOLATION OF ORDER: THE ABDUCTION, CONCEALMENT OR DETENTION OF A

2 CHILD IN VIOLATION OF THIS ORDER IS PUNISHABLE AS A CATEGORY D FELONY AS PROVIDED IN NRS
3 193.130. NRS 200.359 provides that every person having a limited right of custody to a child or any parent having no
4 right of custody to the child who willfully detains, conceals or removes the child from a parent, guardian or other person
5 having lawful custody or a right of visitation of the child in violation of an order of this court, or removes the child from
6 the jurisdiction of the court without the consent of either the court or all persons who have the right to custody or
7 visitation is subject to being punished for a category D felony as provided in NRS 193.130.

8 The terms of the Hague Convention of October 25, 1980, adopted by the 14th Session of the Hague
9 Conference on Private International Law, apply if a parent abducts or wrongfully retains a child in a foreign country.

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ORDER AND NOTICE

In accordance with Washoe County District Court Rule 31(5)¹, as approved by the Nevada Supreme Court, Orders for Protection Against Domestic Violence, whether temporary, extended, modified or other, are effective as of the date of issuance by a Second Judicial District Court Master. These Orders do not require the signature of a District Court Judge to become effective.

A party against whom a **Temporary Order of Protection (TPO)** has been issued by a Second Judicial District Court Master, may file a Motion to Contest the TPO with the Court, at the Family Court Filing office, located at One South Sierra Street, First Floor, Reno, Nevada.

Any party may also file an Objection to an **Order** issued by a Second Judicial District Court Master within 10 days of service the Order.

A party may request a stay of an Order of Protection by filing a motion with the Court.

Forms for Motions and Objections are available at the Family Court Filing office or the Self-Help Center, both of which are located at One South Sierra Street, First Floor, Reno, Nevada.

IT IS SO ORDERED.



District Court Judge

¹ WCDR 31.5 states, "In cases involving orders for protection against domestic violence, the recommendation of the master shall become effective upon notice to the parties, unless stayed pending review by the judge. A stay of the master's recommendation may be granted at the request of any party to the action or upon the initiative of the court."

*Washoe County Law Library
Community Service Program*

Lawyer in the Library

Family Law - Tuesday Evenings

General Law - Wednesday Evenings

Participants speak individually
with a volunteer attorney for free.

- * Those present at 4:30pm draw a number to determine their place in line by lottery
- * After the lottery it is first come first served.
- * Sign up begins after the lottery.
- * The program is limited to 10 places each evening.
- * You must sign up in person and fill out a form after the lottery
- * This program is not intended to provide extensive legal advice.
- * Library staff will assist with legal information requests; please ask for assistance.
- * Come prepared with questions written down; time is limited.
- * If language assistance is needed please bring an interpreter.

Washoe County Law Library
75 Court St. - Historic Courthouse

(775)328-3250

www.washoecounty.us/lawlib

OTHER Local Legal Agencies Offering Help
Call the agencies directly for more information.

Forms Clinics

NEVADA LEGAL SERVICES

650 Tahoe St. Reno, NV 89509

~Off of California Ave. and Forest St.; 1 blk west of Virginia~
(775)284-3491 x230 - leave msg if necessary

Every 1st & 3rd Thursday of each month the clinic is held
from 4:30-6:30pm at 75 Court St. in the Jury Room #116.

Every 2nd & 4th Wednesday of the month the clinic is held
from 2:00-4:00pm at the Nevada Legal Services offices.

- * Assistance is provided to complete forms.
- * Attorney is present at most clinics.
- * Referral and placement services are available.
- * Notary available.
- * Register by calling Nevada Legal Services 284-3491 x230

WASHOE LEGAL SERVICES

299 S. Arlington Ave., Reno, NV 89501

~North of Ridge St. on west side of Arlington~
(775)329-2727 - leave msg if necessary

Every Friday clinic is held from 11:00-1:00pm at
75 Court St. in the Jury Room #116.

- * Assistance is provided to complete forms.
- * Referral and placement services are available.
- * Notary available.
- * NO LEGAL ADVICE PROVIDED
- * Please register by calling Washoe Legal Services 329-2727